

Opinion of the Court

in fact, acknowledges that the language of the citizen-suit provision is ambiguous. *Post*, at 131.

JUSTICE STEVENS relies on our treatment of a similar issue as jurisdictional in *Gwaltney of Smithfield, Ltd. v. Chesapeake Bay Foundation, Inc.*, 484 U. S. 49 (1987). *Post*, at 114. The statute at issue in that case, however, after creating the cause of action, went on to say that “[t]he district courts shall have jurisdiction, *without regard to the amount in controversy or the citizenship of the parties*,” to provide various forms of relief. 33 U. S. C. § 1365(a) (emphasis added). The italicized phrase strongly suggested (perhaps misleadingly) that the provision was addressing genuine subject-matter jurisdiction. The corresponding provision in the present case, however, reads as follows:

“The district court shall have jurisdiction in actions brought under subsection (a) of this section against an owner or operator of a facility to enforce the requirement concerned and to impose any civil penalty provided for violation of that requirement.” 42 U. S. C. § 11046(c).

It is unreasonable to read this as making all the elements of the cause of action under subsection (a) jurisdictional, rather than as merely specifying the remedial *powers* of the court, viz., to enforce the violated requirement and to impose civil penalties. “Jurisdiction,” it has been observed, “is a word of many, too many, meanings,” *United States v. Vanness*, 85 F. 3d 661, 663, n. 2 (CA DC 1996), and it is commonplace for the term to be used as it evidently was here. See, e. g., 7 U. S. C. § 13a–1(d) (“In any action brought under this section, the Commission may seek and the court shall have jurisdiction to impose . . . a civil penalty in the amount of not more than the higher of \$100,000 or triple the monetary gain to the person for each violation”); 15 U. S. C. § 2622(d) (“In actions brought under this subsection, the district courts shall have jurisdiction to grant all appropriate relief,

Opinion of the Court

including injunctive relief and compensatory and exemplary damages”); 42 U.S.C. § 7622(d) (“In actions brought under this subsection, the district courts shall have jurisdiction to grant all appropriate relief including, but not limited to, injunctive relief, compensatory, and exemplary damages”).

It is also the case that the *Gwaltney* opinion does not display the slightest awareness that anything *turned upon* whether the existence of a cause of action for past violations was technically jurisdictional—as indeed nothing of substance did. The District Court had statutory jurisdiction over the suit in any event, since continuing violations were also alleged. See 484 U.S., at 64. It is true, as JUSTICE STEVENS points out, that the issue of Article III standing which is addressed at the end of the opinion should technically have been addressed at the outset if the statutory question was not jurisdictional. But that also did not really matter, since Article III standing was in any event found. The short of the matter is that the jurisdictional character of the elements of the cause of action in *Gwaltney* made no substantive difference (nor even any procedural difference that the Court seemed aware of), had been assumed by the parties, and was assumed without discussion by the Court. We have often said that drive-by jurisdictional rulings of this sort (if *Gwaltney* can even be called a ruling on the point rather than a dictum) have no precedential effect. See *Lewis v. Casey*, 518 U.S. 343, 352, n. 2 (1996); *Federal Election Comm’n v. NRA Political Victory Fund*, 513 U.S. 88, 97 (1994); *United States v. L. A. Tucker Truck Lines, Inc.*, 344 U.S. 33, 38 (1952). But even if it is authoritative on the point as to the distinctive statute there at issue, it is fanciful to think that *Gwaltney* revised our established jurisprudence that the failure of a cause of action does not automatically produce a failure of jurisdiction, or adopted the expansive principle that a statute saying “the district court shall have jurisdiction to remedy violations [in specified ways]”

Opinion of the Court

renders the existence of a violation necessary for subject-matter jurisdiction.

JUSTICE STEVENS' concurrence devotes a large portion of its discussion to cases in which a statutory standing question was decided before a question of constitutional standing. See *post*, at 115–117. They also are irrelevant here, because it is not a statutory *standing* question that JUSTICE STEVENS would have us decide first. He wishes to resolve, not whether EPCRA authorizes this plaintiff to sue (it assuredly does), but whether the scope of the EPCRA right of action includes past violations. Such a question, we have held, goes to the merits and not to statutory standing. See *Northwest Airlines, Inc. v. County of Kent*, 510 U. S. 355, 365 (1994) (“The question whether a federal statute creates a claim for relief is not jurisdictional”); *Romero v. International Terminal Operating Co.*, *supra*, at 359; *Montana-Dakota Util. Co. v. Northwestern Public Service Co.*, 341 U. S. 246, 249 (1951).

Though it is replete with extensive case discussions, case citations, rationalizations, and syllogoids, see *post*, at 120, n. 12, and n. 2, *infra*, JUSTICE STEVENS' opinion conspicuously lacks one central feature: a single case in which this Court has done what he proposes, to wit, call the existence of a cause of action “jurisdictional,” and decide that question before resolving a dispute concerning the existence of an Article III case or controversy. Of course, even if there were not solid precedent contradicting JUSTICE STEVENS' position, the consequences are alone enough to condemn it. It would turn every statutory question in an EPCRA citizen suit into a question of jurisdiction. Under JUSTICE STEVENS' analysis, § 11046(c)'s grant of “jurisdiction in actions brought *under* [§ 11046(a)]” withholds jurisdiction over claims involving purely past violations if past violations are not in fact *covered* by § 11046(a). By parity of reasoning, if there is a dispute as to whether the omission of a particular item constituted a failure to “complete” the form; or as to